

1	Young vs. Toll Brothers, Inc. 30-2024-01377444	<u>Motion to Vacate and Set Aside</u> Plaintiff Jennifer Young’s Motion to Vacate and Set Aside the Court’s February 20, 2026 Order Granting Defendants’ Motion for Summary Judgment is taken OFF CALENDAR. <u>Pending Motion</u> Plaintiff Jennifer Young moves to vacate and set aside the court’s February 20, 2026 order granting Defendants Toll Brothers, Inc.’s; Toll West Coast LLC’s, and Westminster Title Company, Inc.’s Motion for Summary Judgment. (See ROA #160.) <u>Prior Proceedings</u> On April 21, 2026, Plaintiff filed a Notice of Appeal of the Judgment on Defendants Toll Brothers, Inc., Toll West Coast LLC, and Westminster Title Company, Inc.’s Motion for Summary Judgment. (See ROA #175, #181.) The Notice of Appeal was filed after this motion was filed but before this motion could be heard. <u>Stay on Appeal</u> The Civil Procedure Code provides that: Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. (Code Civ. Proc., § 916, subd. (a).) Thus, the perfecting of an appeal results in an automatic stay of matters embraced or affected by the appeal, and it “divests the trial court of jurisdiction over the subject matter on appeal – i.e., jurisdiction in its fundamental sense.” (<i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198.) By its terms, Section 916 only stays “proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby,
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	including enforcement of the judgment or order.” (Code Civ. Proc., § 916, subd. (a).) The stay does not apply to “any other matter embraced in the action and not affected by the judgment or order” from which the appeal is taken. (<i>Ibid.</i>) “In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results.” (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189.) “[A] proceeding affects the effectiveness of the appeal if the very purpose of the appeal is to avoid the need for that proceeding. In that situation, the proceeding itself is inherently inconsistent with a possible outcome on appeal and must therefore be stayed under section 916, subdivision (a).” (<i>Id.</i> at p. 190.) At the same time, an appeal does not stay proceedings on “ancillary or collateral matters which do not affect the judgment [or order] on appeal.” (<i>Betz v. Pankow</i> (1993) 16 Cal.App.4th 931, 938.) “A postjudgment proceeding that is ancillary or collateral to the appeal is not stayed ‘if the proceeding could or would have occurred regardless of the outcome of the appeal.’ If the postjudgment proceedings would not affect the effectiveness of the appeal, the proceedings are permitted.” (<i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 311, quoting <i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 191.) In this motion, Plaintiff requests that the court vacate and set aside its order granting Defendants’ motion for summary judgment. In that same order, the court ordered that judgment be entered for Defendants Toll Brothers, Inc.; Toll West Coast LLC; and Westminster Title Company, Inc. (collectively, Defendants). (See ROA #160.) Plaintiff now has appealed the judgment entered in favor of Defendants. Thus, this is a proceeding that “directly or indirectly seek[s] to ‘enforce, vacate, or modify [the] appealed judgment or order.” (<i>Varian Medical Systems, Inc. v. Delfino, supra</i>, 35 Cal.4th at p. 189.)
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		If Plaintiff prevails on her appeal, this motion would be rendered moot. Thus, this proceeding is inherently inconsistent with a possible outcome on appeal. Viewed another way, if the court were to grant this motion, that would vacate or set aside the court's order dated February 20, 2026. In turn, that would undermine the judgment that Plaintiff seeks to challenge on appeal. Accordingly, this is a proceeding that affects the effectiveness of the appeal. It is not a proceeding that could or would have occurred regardless of the outcome of the appeal. As a result, this proceeding is stayed by Section 916 and the court lacks jurisdiction to consider the motion pending the appeal. For this reason, the court will take the motion off calendar. Defendants shall give notice of this ruling.
2	I.B.I Volcano Investments LLC vs. Nelson 30-2025-01513043	<u>Motion for Leave to Amend</u> Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint is GRANTED. Plaintiff I.B.I. Volcano Investments LLC shall file and serve Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint, attached as Exhibit A to the Declaration of Adam A. Vukovic in Support of Plaintiff's I.B.I. Volcano Investments LLC's Motion for Leave to File an Amended Complaint, within 30 days of this ruling. <u>Pending Motion</u> Plaintiff I.B.I Volcano Investments LLC moves for leave to file Plaintiff I.B.I. Volcano Investments LLC's, First Amended Complaint. <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a